

Niyaj v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 March 2019 · Writ-C No. 8381 of 2019 · **Writ disposed; EE to decide clause 6.14 instalment representation within one month.**

HEADNOTE

A writ seeking a new electricity connection while arrears of Rs. 43,177 remained unpaid was disposed of without deciding the demand or the licensee's objection that connection cannot issue until dues are cleared. The petitioner was directed to represent to the Executive Engineer for instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005; that representation is to be considered and decided within one month of presentation of a certified copy of the order.

FACTUAL SUMMARY

Niyaj challenged a demand notice dated 8 July 2018 for Rs. 43,177 as electricity dues. The arrears related to a period before disconnection, when the connection stood in his father's name. The father died in 2000 and supply was then disconnected. The petitioner applied for a new connection, which was withheld. He told the Court he would pay if instalments were fixed. Counsel for the distribution licensee submitted that no new connection could be given until the dues were cleared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for outstanding electricity dues

HOLDING

Where a new connection is withheld for unpaid electricity arrears and the petitioner offers to pay in instalments, the Court will not grant the connection or adjudicate the demand on the writ. The petitioner may file a representation before the Executive Engineer for instalments as provisioned under clause 6.14 of the U.P. Electricity Supply Code, 2005, to be considered and decided within one month of presentation of a certified copy of the order with the representation. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The writ was disposed by relegating the petitioner to a clause 6.14 representation for instalments of the outstanding dues, to be decided by the Executive Engineer within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND OF RS. 43,177 AND THE PETITIONER'S LIABILITY FOR ARREARS STANDING IN THE DECEASED FATHER'S NAME

The Court recorded the demand and the history of the connection but did not adjudicate the bill or successor liability.

¶ 1

NOT DECIDED — WHETHER A NEW CONNECTION MAY BE WITHHELD UNTIL OUTSTANDING DUES ARE CLEARED

The licensee's submission that no new connection can be given unless dues are clear was recorded but not decided. ¶ 1